



Notification Waiver Determination

Oakley Capital - Graphwise

Acquisition	Oakley Eberg Luxco S.à.r.l applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital and voting rights in Ontotext AD (trading as Graphwise), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 September 2026

Parties to the Acquisition	The acquirer, Oakley Eberg Luxco S.à.r.l, is indirectly controlled by one or more affiliates of Oakley Capital Manager S.à r.l, a Luxembourg governed entity advised by Oakley Capital Limited as investment advisor to Oakley Capital VI Aggregator SCSp (together, Oakley Capital). Oakley Capital is a pan-European private equity firm headquartered in London, which focuses on investing across the core sectors of digital consumer, technology, business services, and education. The target, Graphwise, is an enterprise artificial intelligence platform provider specialising in knowledge graph technology, semantic data management, and GraphRAG (graph-based retrieval-augmented generation).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap or vertical relationship between Oakley Capital (or its connected entities) and Graphwise in the supply of software and information technology products and services supplied by Graphwise in Australia - there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act